

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/06/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: C23-02528
CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC
COURT TRIAL HEARING
FILED BY:
TENTATIVE RULING:

This matter is an ongoing court trial.

2. 9:00 AM CASE NUMBER: C26-01145
CASE NAME: SEREN PENDLETON-KNOLL VS. CHRISTOPHER SALDANA
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: SALDANA, CHRISTOPHER
TENTATIVE RULING:

Before the Court is a motion by defendant Christopher Saldana to quash service of the summons and

complaint. For the reasons set forth, the motion is **denied**.

Background

Plaintiff alleges that she and defendant Christopher Saldana are the owners in joint tenancy of a single-family residence located on Santa Rita in Richmond (the "Property"). (Compl. ¶¶ 1, 14.) She also claims an ownership interest with Saldana as tenants in common in certain personal property the parties accumulated during their relationship. (Compl. ¶ 1.) She asserts claims for partition, accounting, and declaratory relief.

Saldana resides at the Property. (Compl. ¶ 15; Saldana Decl. ¶ 2.) Plaintiff filed a proof of service by a registered process server in which the process server declared that he personally served defendant Christopher Saldana with the summons and complaint at 7:01 p.m. on April 9, 2026. (POS filed 4/15/2026.) Defendant Saldana moves to quash the service, contending that the documents were not personally handed to him, that they were left on his doorstep, and that he did not "accept" service. (Saldana Decl. ISO Mot. ¶¶ 2-5.)

Legal Standards Applicable to Motion to Quash and Personal Service of Summons and Complaint

Under Code of Civil Procedure section 418.10, a party who has not made a general appearance in the action may challenge service by moving to quash the summons and complaint. (Code Civ. Proc. § 418.10(a)(1); *Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793-794 ("*Floveyor*").) A court lacks jurisdiction over a party who has not been properly served with the summons and complaint. (*Dill, supra*, 24 Cal.App.4th at 1439-1440 ["[C]ompliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant," unless the defendant voluntarily makes a general appearance].)

A registered process server's declaration of service "establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code § 647; *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750; *Floveyor, supra*, 59 Cal.App.4th at 795 [rebuttable presumption service was proper].) "However, the presumption arises only if the proof of service complies with the applicable statutory requirements. [Citations omitted.]" (*Floveyor, supra*, 59 Cal.App.4th at 795.) (See also *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 ["Because of the statutory presumption, defendant was thus required to produce evidence that he was not served."].)

If the defendant presents evidence that he was not served, then Plaintiff bears the burden of proving service was proper under the service of process statutes. "When a defendant challenges that [personal] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Dill, supra*, 24 Cal.App.4th at 1439-1440.)

Code of Civil Procedure section 415.10 provides for personal service of a summons and complaint: "A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." The statute does not define what constitutes "personal delivery."

Generally, courts have interpreted personal service to mean "the actual delivery of the papers to the defendant in person." (*Stembeck v. Buck* (1957) 148 Cal.App.2d 829, 832.) However, "[t]he individual upon whom the process server attempts to make personal service by manual delivery may not be

heard to claim that service was improper because he refused to accept service." (*Crescendo Corp. v. Shelted, Inc.* (1968) 267 Cal.App.2d 209, 213.) The Court explained: " 'Personal service usually contemplates actual delivery. But the person on whom service is sought may not, by merely declining to take the document offered, deny the personal service on the ground of lack of delivery, where under the circumstances it would be obvious to a reasonable person that a personal service was being attempted. In such case the service may be made by merely depositing the process in some appropriate place where it would be most likely to come to the attention of the person being served.' [Citation omitted.]" (*Id.* at 212.)

Procedural Issues Regarding Service of the Motion

Defendant filed a declaration of service by a third party on May 12, 2026, in which the third party declares copies of the motion to quash were served by mail on counsel for Plaintiff on May 11, 2026. Plaintiff's counsel has filed a declaration with what he declares are the copies of the motion papers served on him by mail, with a copy of the envelope in which the papers were enclosed. (Hilliard Decl. Exh. D.) The motion papers are all unsigned, including Saldana's declaration, and do not include any hearing date, time or place. The proof of service attached to the served copy shows the papers were served on May 10, 2026, but the envelope is postmarked four days later on May 14, 2026.

It is not clear to the Court whether Defendant re-served the motion papers after they were filed on May 11, 2026, but Hilliard denies receiving service of anything other than Exhibit D to his declaration. The evidence on service of the motion raises questions regarding proper service; without service of a notice of motion or notice of hearing that includes the hearing date, time and place, notice is defective. A notice of a motion must include, among other information, the date of the hearing. (Code Civ. Proc. § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (emphasis added)]; *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537 [failure to include notice of date and time of hearing in notice of motion renders the notice fatally defective]; *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538 [addressing notice of motion for sanctions]; Cal. R. Ct. 3.1110(b)(1) [the notice of a motion must set forth "the date, time, and location, if ascertainable, of any scheduled hearing. . . ."]].)

Nevertheless, Plaintiff has filed a comprehensive opposition on the merits of the motion. The Court will address the motion on its merits rather than denying the motion for defective service of notice.

Procedural Issues Regarding Opposition to Motion to Quash

The opposition to the motion to quash was not served in compliance with Code of Civil Procedure section 1005. The Court agrees with Defendant that the opposition was improperly served. The proof of service attached to the opposition shows it was served by regular mail on July 23, 2026, ten court days prior to the date of the hearing. Though service was made one day before the nine-court day prior to the hearing deadline for an opposition, Code of Civil Procedure section 1005 requires oppositions and replies to motions to be served "by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party . . . not later than the close of the next business day after the time the opposing or reply papers, as applicable, are filed." (Code Civ. Proc. § 1005(c).)

Defendant has objected to the service of the opposition and contends that he did not receive the

mail-served version of the opposition of the date his reply was due. Nevertheless, like Plaintiff, Defendant filed 29 pages of pleadings and declarations in reply to the opposition. The Court will address the motion, opposition, and reply on the merits.

Analysis

A. Personal Service Was Effectuated

The proof of service by the process server declares that he effectuated personal service on Saldana. He states that he "personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): 04/09/2026 at (time): 7:01 PM Christopher Saldana, I delivered the documents to Christopher Saldana with identity confirmed by subject nodding when named. The individual tried to refuse service by refusing to take documents and stated subject is unknown (documents left, seen by subject). The individual appeared to be a black-haired Hispanic male contact 35-45 years of age, 5'8"-5'10" tall and weighing 160-180 lbs. The subject was evasive. See picture of license plate." (POS filed 4/15/2026.)

The "picture of license plate" is not included in the filed proof. Nevertheless, the proof of service meets the requirements of Code of Civil Procedure section 417.10 in effect until January 1, 2027. That statute requires only that for service by personal service under Code of Civil Procedure section 415.10, the proof of service consist of an "affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered" (Code Civ. Proc. § 417.10(a).) This is sufficient to support the presumption of service. (Evid. Code § 647.)

Saldana's motion is supported by his declaration in which he states that an individual came to his door on April 9, 2026 and attempted to serve legal documents on him. (Saldana Decl. ¶ 2.) Saldana says the process server did not "personally hand the documents to him" but left them near his front door and left. (Saldana Decl. ¶¶ 3, 4.) He says he did not "accept personal service of the document." (Saldana Decl. ¶ 5.)

Plaintiff's counsel has filed a declaration in opposition to the motion which includes, among other evidence, an email from Saldana to counsel Hilliard indicating it was sent after 8 p.m. on April 9, 2026, a time after the service was made according to the process server's declaration. (Hilliard Decl. Exh. B.) In the email, Saldana confirms facts which support that he was personally served. He states: "I was approached while in the process of getting my children out of the car, and the interaction that followed caused immediate and significant distress to my daughter. She remains visibly shaken well after the incident. This is not a minor issue—this is a direct and unnecessary impact on a child's sense of safety. [¶] I have video footage of the interaction, which shows that the documents were not handed to me, but instead left at my front door in a manner that was abrupt and disruptive under the circumstances." (Hilliard Decl. Exh. B.) The following day, Saldana sent another email in response to Plaintiff's counsel email in which Hilliard indicated that the process server's version of events was quite different, stating: "I was in the process of getting my young children out of the car when an individual approached, initiated a brief interaction, and then left documents at my front door in an abrupt and disruptive manner. I have video footage documenting the interaction." (Hilliard Decl. Exh. C.) The email again implicitly confirms that the process server had an interaction with Saldana

regarding the service of legal papers (summons and complaint package), and the emails support the process server's characterization of the interaction, including that Saldana was evasive, would not allow the process server to hand the documents to him, and that Saldana was aware the legal documents were being delivered to him though he would not "accept" them. The ring camera video footage which the Court has reviewed from the Google drive link does not capture the interaction that Saldana admittedly had with the process server in the driveway, only the aftermath of that interaction.

Saldana disputes that his emails to counsel are admissions of proper service because he asserted that service was invalid because the documents were "not handed to him" and therefore proper service was not made. (Reply p. 2, ll. 8-10.) Collectively, the process server's Proof of Service, the Saldana Declaration in support of the motion (including his declaration that he has "personal knowledge" of what occurred), and the subsequent email exchanges attached to the Hilliard Declaration show that Saldana was approached by the process server who was attempting to hand Saldana documents that Saldana understood were legal papers, that he refused to allow the process server to hand the documents to him and accept the physical delivery, and the process server therefore left the documents next to his front door where they were clearly visible and where Saldana knew the documents had been left for him. The fact that the process server approached him with the legal documents attempting to serve him in his driveway, as admitted by Saldana's emails to Plaintiff's counsel, and that the process server did not put them into Saldana's hands, apparently because Saldana did not "accept" the documents, does not mean valid personal service was not effectuated. What is required under the statute is that the summons and complaint be personally delivered. The evidence supports that they were personally delivered to Saldana. Weighing the evidence before the Court and under the authority of *Crescendo Corp., supra*, personal service of the summons and complaint by personal delivery to Saldana was effectuated.

B. Defendant's Request for Oral Testimony

Saldana requests that the Court allow oral testimony to address the service of the papers. The Court finds that the totality of the evidence before the Court, including Saldana's own emails, are sufficient to demonstrate personal service by personal delivery of the summons and complaint was accomplished. The Court in its discretion **denies** Defendant's request for oral testimony under Rule 3.1306 of the California Rules of Court.

C. General Appearance by Saldana's Motion to Expunge Lis Pendens

On July 21, 2026, Saldana filed a motion to expunge the lis pendens that Plaintiff filed and recorded against the Property. Plaintiff contends that Saldana's motion to expunge the lis pendens constitutes a general appearance in the action, rendering the motion to quash moot as he has submitted to the personal jurisdiction of the Court over him. The Court briefly reviewed the motion which is made on the ground that the lis pendens is void based on Plaintiff's failure to comply with the pre-filing service requirements of the lis pendens statutes.

Plaintiff cites cases addressing generally what constitutes a general appearance. To the extent Plaintiff appears to argue that Defendant filing the motion to expunge has resulted in a waiver of his right to contest personal jurisdiction by the motion to quash, the Court rejects the argument.

Code of Civil Procedure section 418.10(e) expressly allows a defendant to both file a motion to quash

and "simultaneously answer, demur, or move to strike the complaint" even though those acts would otherwise constitute a general appearance in the action. The statute further provides: "Notwithstanding Section 1014, no act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section. If the court denies the motion made under this section, the defendant or cross-defendant is not deemed to have generally appeared until entry of the order denying the motion." (Code Civ. Proc. § 418.10(e)(1) [emphasis added].)

The "no act" language was added to Code of Civil Procedure section 418.10 in 2002 and has been construed "broadly." (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 211, 214.) "Subdivision (e) prevents the inadvertent waiver of objections to jurisdiction by delaying recognition of the party's general participation in the litigation until after the jurisdictional issue is finally resolved." (*State Farm General Ins. Co. v. JT's Frames, Inc.* (2010) 181 Cal.App.4th 429, 441 [emphasis added].) "A party may answer, demur, move to strike and perform other actions related to the merits without fear of accidentally waiving a potentially meritorious attack on personal jurisdiction." (*Id.* [emphasis added].) As the Court in *State Farm* explained, "[S]ubdivision (e) does not change the essential rule that '[a] defendant submits to the court's jurisdiction by making a general appearance in an action' by 'participat[ing] in the action in a manner which recognizes the court's jurisdiction.' [Citations omitted.] It merely delays the effect of such actions until the motion to quash is denied or, if the defendant seeks writ review, until proceedings on the writ have concluded. Once the motion is denied or writ proceedings have concluded, the actions undertaken by the defendant while the motion or writ was pending that recognized the trial court's jurisdiction will be 'deemed' to constitute a general appearance, and no further objection to jurisdiction will be permitted." *JT's*, having participated fully in resolving the merits of the litigation while the writ was pending, submitted itself to the jurisdiction of the court and waived any further right to contest personal jurisdiction." (*Id.* [emphasis added].)

Filing the motion to expunge the *lis pendens* while this motion to quash was pending and not yet determined does not result in a waiver or submission to the Court's jurisdiction, until the motion to quash is resolved. The Court need not address on this motion whether the filing of the motion to expunge constitutes a general appearance in the action.

D. Defendant's Objections to the Opposition

Defendant's Reply includes what Saldana characterizes as "evidentiary" objections, but Objections 1-8 are directed toward legal arguments and factual assertions made in Plaintiff's opposition memorandum, not evidence. Nevertheless, the Court will address Defendant's objections for purposes of clarity regarding the basis of the Court's ruling.

Obj. Nos. 1, 2, and 8: Defendant's "evidentiary" objections are not objections to the admissibility of evidence but rather legal and factual arguments responding to Plaintiff's legal and factual arguments; the Court has considered both parties' relevant legal and factual arguments and the applicable law as set forth in this ruling to reach its conclusion.

Obj. Nos. 3-5: Plaintiff's arguments concerning events in the parties' related pending family law proceeding, D26-00392, possible criminal proceedings, or a "pattern" of evasion of service are not supported by admissible evidence in the record on this motion. The Court has disregarded the

arguments as unsupported and/or irrelevant.

Obj. No. 6: The Court agrees that there is no motion before the Court on this hearing regarding whether Defendant can be compelled to accept electronic service, and the Court does not consider the issue as a result.

Obj. No. 7: The Court has considered the Ring doorbell footage in reaching its ruling with limited ability to discern the audio content, which is consistent with Defendant's attempt to transcribe the audio. (Saldana Suppl. Decl. Exh. B.)

Conclusion and Ruling

Weighing the evidence before the Court, the Court finds Plaintiff has demonstrated Saldana was personally served with the summons and complaint as stated under oath by the process server who performed the service and based on other evidence consistent with such service. The motion to quash service of the summons and complaint is therefore **denied**. Defendant shall file his responsive pleading **within 15 days of the date of service of notice of entry of the order** on the motion to quash. (Code Civ. Proc. § 418.10(b) ["The service and filing of the notice shall extend the defendant's time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant's time to plead for an additional period not exceeding 20 days."].)

Law & Motion

3. 9:00 AM CASE NUMBER: C24-01225
CASE NAME: KEYONA TURNER VS. LEADERSTAT LLC
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

The Court has reviewed the Declaration of Mayra Gonzalez and approves the final distributions from the settlement fund.

4. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

The Motion to Be Relieved as Counsel is **granted**.

5. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON SUMMARY MOTION